

PETITION FOR PROTECTIVE ORDER

Commonwealth of Virginia Va. Code §§ 19.2-152.9; 19.2-152.10

Case No.

Hearing Date and Time

☐ General District Court ☐ Circuit Court
☐ Juvenile and Domestic Relations District Court

SUMMONS FOR HEARING

TO ANY AUTHORIZED OFFICER: Summon the Respondent as provided below:

TO THE RESPONDENT: You are commanded to appear before this Court on

DATE AND TIME

at for a hearing on this Petition.

NAME AND ADDRESS OF COURT

DATE ISSUED

[] CLERK [] DEPUTY CLERK

PETITIONER

v.

RESPONDENT

RESPONDENT'S ADDRESS/LOCATION

TO THE PETITIONER: Please provide your information on form DC-621, NON-DISCLOSURE ADDENDUM.

RESPONDENT'S DESCRIPTION (IF KNOWN)

RACE	SEX	BORN			HT.		WGT.	EYES	HAIR
		MO.	DAY	YR.	FT.	IN.			
		SSN							
DRIVER'S LICENSE NO.							STATE	EXP.	

Telephone no. (H) (W)

The undersigned Petitioner respectfully represents to the court that:

1. A warrant or petition has been issued charging the Respondent with a criminal offense resulting from the commission of an act of violence, force, or threat; OR
2. Respondent is committing or, within a reasonable time, has committed an act of violence, force, or threat, specifically:

☐ See accompanying affidavit.

3. ☐ Petitioner and Respondent cohabited, as intimate partners, more than 12 months ago but not within the previous 12 months.
4. ☐ A protective order of any type involving the parties is currently in effect.
5. ☐ Petitioner knows or has reason to know that the Respondent owns or otherwise possesses firearms.

PETITIONER, THEREFORE, RESPECTFULLY REQUESTS that a protective order be issued,

☐ with ☐ without a preliminary protective order being issued prior to the full hearing, and
that any order impose on the Respondent the following conditions and such conditions as the judge deems appropriate as allowed by law:

- ☐ Prohibiting acts of violence, force, or threat or criminal offenses that may result in injury to person or property.
- ☐ Prohibiting such other contact with the Petitioner as the judge deems necessary for the health and safety of the Petitioner.
- ☐ Prohibiting such other contact with the Petitioner's family or household members named below, as the judge deems necessary for their health and safety. (Please provide on form DC-621, NON-DISCLOSURE ADDENDUM, the date of birth, gender, and race for each family or household member listed.)

NAMES OF FAMILY OR HOUSEHOLD MEMBERS

Case No.

☐ Granting the Petitioner possession of the companion animal described as
NAME/TYPE

☐ Such other conditions as the judge may deem necessary to prevent acts of violence, force or threat, criminal offenses resulting in injury to person or property, or communication or other contact of any kind by the Respondent, namely:

.....

.....
DATE

.....
PETITIONER

.....
ATTORNEY'S ADDRESS AND TELEPHONE NUMBER

by
PETITIONER'S ATTORNEY

(When attested, this Petition shall also be an affidavit of the facts as stated in the Petition.) Sworn to and affirmed before me this

..... day of, 20

.....
☐ INTAKE OFFICER (*JUVENILE ONLY*) ☐ CLERK

☐ NOTARY PUBLIC My commission expires:

Notary Registration No.

..... DATE AND TIME FILED	 ☐ CLERK ☐ DEPUTY CLERK
TO THE PETITIONER: You are summoned to appear in this court on	
..... DATE	 ☐ CLERK ☐ DEPUTY CLERK

RETURNS: Each person was served according to law, as indicated below, unless not found.

RESPONDENT: Name: Address Tel. No. ☐ PERSONAL SERVICE Being unable to make personal service, a copy was delivered in the following manner: ☐ Delivered to family member (not temporary sojourner or guest) age 16 or older at usual place of abode of party named above after giving information of its purport. List name, age of recipient, and relation of recipient to party named above. ☐ Posted on front door or such other door as appears to be the main entrance of usual place of abode, address listed above. (Other authorized recipient not found.) ☐ Not Found DATE for TIME	PETITIONER: (See form DC-621, NON-DISCLOSURE ADDENDUM) Name: ☐ PERSONAL SERVICE Being unable to make personal service, a copy was delivered in the following manner: ☐ Delivered to family member (not temporary sojourner or guest) age 16 or older at usual place of abode of party named above after giving information of its purport. List name, age of recipient, and relation of recipient to party named above. ☐ Posted on front door or such other door as appears to be the main entrance of usual place of abode, address listed above. (Other authorized recipient not found.) ☐ Not Found DATE for TIME
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“Family or household member” means (i) the person’s spouse, whether or not such spouse resides in the same home with the person; (ii) the person’s former spouse, whether or not such person resides in the same home with the person; (iii) the person’s parents, stepparents, children, stepchildren, brothers, sisters, half-brothers, half-sisters, grandparents and grandchildren regardless of whether such persons reside in the same home with the person; (iv) the person’s mother-in-law, father-in-law, sons-in-law, daughters-in-law, brothers-in-law and sisters-in-law who reside in the same home with the person; (v) any individual who has a child in common with the person, whether or not the person and that individual have been married or have resided together at any time; (vi) any individual who cohabits or who, within the previous twelve (12) months, cohabitated with the person, and any children of either of them residing in the same home with the person; (vii) an individual who is a legal custodian of a juvenile, or (viii) the person’s intimate partner.

“Act of violence, force, or threat” means any act involving violence, force, or threat that results in bodily injury or places one in reasonable apprehension of death, sexual assault, or bodily injury. Such act includes, but is not limited to, any forceful detention, stalking, criminal sexual assault in violation of Article 7 (§ 18.2-61 et. seq.) of Chapter 4 of Title 18.2, or any criminal offense that results in bodily injury or places one in reasonable apprehension of death, sexual assault, or bodily injury.

“Intimate partner” means an individual who, within the previous 12 months, was in a romantic, dating, or sexual relationship with the person as determined by the length, nature, frequency, and type of interaction between the individuals in the relationship.